



Merchant Shipping Act 1967

1967 CHAPTER 26

An Act to amend section 92 of the Merchant Shipping Act 1894. [10th May 1967]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension of,
and new penal
provision for,
section 92 of
Merchant
Shipping
Act 1894.
1894 c. 60.

1.—(1) Section 92 of the Merchant Shipping Act 1894 shall be amended in accordance with the following provisions of this section.

(2) In subsection (1) (which requires every British foreign-going ship and every British home trade passenger ship, when going to sea from any place in the United Kingdom, and, in certain circumstances, other ships, to be provided with officers duly certificated under that Act according to the scale set out in that subsection) after the words "from any place in the United Kingdom" there shall be inserted the words "every ship registered in the United Kingdom, being a foreign-going ship or a home trade passenger ship, when going to sea from a place outside the United Kingdom".

(3) After subsection (1), there shall be inserted the following subsection:—

"(1A) If, on an occasion on which a ship of a particular description registered in the United Kingdom, being a foreign-going ship or a home trade passenger ship, goes to sea from a place outside the United Kingdom, one, but only one, of the duly certificated officers with which a ship of that description is required to be provided by the foregoing provisions of this section is not provided, but all reasonable steps were taken to secure the provision on that occasion of a duly certificated person as that officer, so much of the

foregoing subsection as requires a ship of that description to be provided with that officer when going to sea from a place outside the United Kingdom shall not apply to the ship during whichever is the shorter of the following periods beginning with the day on which the ship goes to sea from that place on that occasion, that is to say—

(a) the period of twenty-eight days; and

(b) the period ending with the day on which the ship is provided with a duly certificated person as that officer”.

(4) For subsection (2) (which penalises a person engaged as such an officer as is mentioned in the said subsection (1) who goes to sea without being duly certificated and any person who employs another as an officer in contravention of the said subsection (1) without ascertaining that that other is duly certificated) there shall be substituted the following subsection:—

“(2) If the requirements of subsection (1) of this section are not complied with in a case in which they apply to a ship, the master or owner of the ship shall be liable to a fine not exceeding one hundred pounds”.

2.—(1) This Act may be cited as the Merchant Shipping Act Interpretation 1967, and this Act and the Merchant Shipping Acts 1894 to 1965 and may be cited together as the Merchant Shipping Acts 1894 to construction. 1967.

(2) Any reference in an Act passed before the passing of this Act to section 92 of the Merchant Shipping Act 1894 shall, unless 1894 c. 60. the contrary intention appears, be construed as referring to that section as amended by this Act.